

Sadhana Mittal — demand notice relegated to Supply Code objection remedy

High Court of Judicature at Allahabad · Division Bench · 30 January 2013 · WRIT - C No. - 5207 of 2013 · **Writ disposed; petitioner relegated to Supply Code statutory remedy.**

HEADNOTE

A writ to quash a demand notice issued in another person's name was disposed of without examining merits. The Division Bench held that the U.P. Electricity Supply Code, 2005 affords a statutory remedy of raising objections against an electricity bill or charges, which the petitioner may avail.

FACTUAL SUMMARY

Smt. Sadhana Mittal filed a writ petition in the Allahabad High Court seeking quashing of a demand notice dated 5 May 2012 issued in the name of one Shanti Devi. She submitted that she had already filed an objection, addressed to the Managing Director and annexed as Annexure-3, which had not been considered. Counsel for the petitioner and Sri A.L. Yadav for the respondents were heard. The Court did not examine the demand, the billed identity, or the pending objection on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory remedy — objections to electricity bill or charges

HOLDING

Under the U.P. Electricity Supply Code, 2005 the consumer has a statutory remedy of raising objections against an electricity bill or electricity charges; where that remedy is available, the writ court will not examine the demand and will leave the petitioner to avail it. The petition was disposed of with that observation. ¶ 1

FLAG Court cited the Supply Code 2005 generally for objections to bill/charges; clause 6.8 is inferred, not numbered in the order.

PRINCIPLE TAGS

opportunity-before-final-assessment A writ to quash a demand notice issued in another person's name was disposed of without examining merits. The Division Bench held that the U.P. Electricity Supply Code, 2005 affords a statutory remedy of raising objections against an electricity bill or charges, which the petitioner may avail. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 5.5.2012 IS LIABLE TO BE QUASHED, AND WHETHER A DEMAND IN THE NAME OF SHANTI DEVI BINDS THE PETITIONER

Pending objection to the Managing Director also not examined. ¶ 1